

Tentative Rulings
August 28, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the Department if you need this form. Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

31. *Keating II v. Loma Linda University Medical Cntr., et al*, Case No. CIVSB2507211
Defendant's Demurrer to First Amended Complaint
8/28/26, 9:00 a.m., Dept. S-17

Tentative Ruling

The Court would **OVERRULE** the demurrer as to dependent adult abuse by neglect (Cause 1). A responsive pleading will be filed within thirty (30) days.

Case Summary

This is, in essence, a medical negligence case. Plaintiff alleges he is a "dependent adult" within the meaning of the Welfare and Institutions Code section 15610.23. He further alleges a host of medical maladies. He was admitted to Loma Linda University Medical Center (Loma Linda) on June 7, 2024, after abdominal pain and nausea. He remained hospitalized until June 25, 2024, but from June 12th through June 24th, Loma Linda purported did not provide him with turning and repositioning care. Plaintiff alleges that, instead, Loma Linda falsely documented that he "refused" turning and repositioning services. He further alleges that Loma Linda withheld timely responses from call button requests and that he developed significant further medical concerns as a result. As a result, he filed suit on March 13, 2025. On December 21, 2025, he filed the operative First Amended Complaint (FAC), alleging (1) dependent adult abuse by neglect and (2) negligence.

Statement of the Law

A demurrer challenges defects that appear on the face of the pleading, which includes incorporated exhibits, or from matters outside the pleading that are judicially noticeable. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.) No other extrinsic evidence can be considered. (*Ion Equipment Corp. v. Nelson* (1980) 110 Cal.App.3d 868, 881.) A demurrer predicated on insufficient facts to constitute a cause of action, pursuant to Code of Civil Procedure, section 430.10(e), should be granted only when the facts alleged on the face of the complaint fails to state any valid claim entitled to the plaintiff. (*Gruenberg v. Aetna Ins. Co.* (1973) 9 Cal.3d 566, 572; *New Livable California v. Assoc. of Bay Area Governments* (2020) 59 Cal.App.5th 709, 714.)

Analysis

Here, Defendant Loma Linda demurs to the first cause of action for "Dependent Adult Abuse by Neglect" as pleaded by Plaintiff in his First Amended Complaint (FAC). In sum, Loma Linda argues that the facts alleged in support of the cause are not sufficiently egregious to constitute neglect under the Elder Abuse and Dependent Adult Civil Protection Act (EADACPA or the Elder Abuse Act). Loma Linda argues that the neglect which is actionable under the EADACPA must be so egregious in nature that it constitutes true abuse in the plain meaning of that term.

The EADACPA defines "neglect" as the negligent failure of any person having the care or custody of an elder or dependent adult to exercise that degree of care that a reasonable person in a like position would exercise. (Welf. & Inst. Code, § 15610.57(a)(1)-(2).) Welfare & Institutions Code § 15610.57, subdivision (b) states: "Neglect includes, but is not limited to, all of the following: [¶] (1) Failure to assist in personal hygiene, or in the provision of food, clothing, or shelter. [¶] (2) Failure to provide medical care for physical and mental health needs . . . [¶] (3) Failure to protect from health and safety hazards.

[¶] (4) Failure to prevent malnutrition or dehydration. [¶] (5) Substantial inability or failure of an elder or dependent adult to manage their own finances. [¶] (6) Failure of an elder or dependent adult to satisfy any of the needs specified in paragraphs (1) to (5), inclusive, for themselves as a result of poor cognitive functioning, mental limitation, substance abuse, or chronic poor health.”

In *Covenant Care* the Supreme Court held that elder dependent abuse “covers an area of misconduct distinct from ‘professional negligence’” and that “the statutory definition of ‘neglect’ speaks not of the undertaking of medical services, but of the failure to provide medical care.” (*Covenant Care, Inc. v. Superior Court* (2004) 32 Cal.4th 771, 783.) *Covenant Care* broadly instructs, “no such overlap occurs in the Elder Abuse Act context, where the Legislature expressly excluded ordinary negligence claims from treatment under the Act.” (See *id.* at 788-789.) The *Covenant Care* court made clear that the Elder Abuse Act has no application to acts other than those of egregious abuse.

Under the Elder Abuse Act, “a plaintiff who proves ‘by clear and convincing evidence’ that a defendant is liable for physical abuse, neglect, or financial abuse (as these terms are defined in the Act), and that defendant has been guilty of ‘recklessness, oppression, fraud, or malice’ in the commission of such abuse, may recover attorney fees and costs.” (*Covenant Care, Inc., supra*, 32 Cal.4th at p. 779 [emphasis].) “Recklessness, unlike negligence, involves more than ‘inadvertence, incompetence, unskillfulness, or a failure to take precautions’ but rather rises to the level of a ‘conscious choice of a course of action . . . with knowledge of the serious danger to others involved in it.’” (*Delaney v. Baker* (1999) 20 Cal.4th 23, 31-32.) Oppression, fraud and malice ‘involve “intentional,” “willful,” or “conscious” wrongdoing of a “despicable” or “injurious” nature.’ [Citation.]” (*Carter v. Prime Healthcare Paradise Valley LLC* (2011) 198 Cal.App.4th 396, 405.)

The determination of whether an entity is a care custodian under the EADACPA is considered on a case-by-case basis as to whether the facts show a person has assumed significant responsibility for attending to one or more of the basic needs of the elder or dependent adult that an able-bodied and fully competent adult would ordinarily be capable of managing without assistance. (*Kruthanooch v. Glendale Adventist Medical Center* (2022) 83 Cal.App.5th 1109, 1124.) The key to this analysis is whether the plaintiff relied on the defendants in any way distinct from an able-bodied and fully competent adult. (*Ibid.* at p. 1125.) Here, the FAC alleges Plaintiff has a host of significant medical maladies. (FAC, ¶12.) As a result, Plaintiff could not turn or reposition himself in bed, cannot transfer himself, and is wholly dependent on caregivers for all activities of daily living. (FAC, ¶12.) The FAC further alleges that because of Plaintiff’s medical conditions, he was at risk of developing ulcers. (FAC, ¶142.) Loma Linda is alleged to have been aware of Plaintiff’s conditions. (FAC, ¶115.) Yet, no plan was made to not provide Plaintiff with turning and repositioning care. (FAC, ¶141.) Plaintiff has therefore alleged sufficiently.

32. *Wallace v. Superior Court of Calif., Co. of Orange*, Case No. 30-2026-01546133-CU-MC-NJC
Plaintiff’s Motion to Strike Portions of Defendant’s Answer
8/28/26, 9:00 a.m., Dept. S-17

Tentative Ruling

The Court would construe the motion to strike the first through eighth affirmative defenses in Defendant’s answer as a motion for judgment on the pleadings. In that light, the Court would **DENY** the

motion because the allegations are proper objections raised by way of the answer and the allegations raise new matters.

Case Summary

In this matter Plaintiff seeks to obtain access to documents and records associated with her ADA accommodation file from within the Defendant Court. On February 9, 2026, Plaintiff filed a verified complaint against the Superior Court of Orange County, alleging causes of action for (1) injunctive relief and (2) declaratory relief. On April 29, 2026, Defendant Court filed its answer including eight “affirmative defenses.”

Analysis

Now before the Court, Plaintiff moves to strike each of Defendant Court’s affirmative defenses on the grounds that they are each irrelevant, conclusory, and not drawn in conformity with the law.

As a preliminary matter, “a motion to strike is generally used to reach defects in a pleading which are not subject to demurrer.” (*Pierson v. Sharp Mem’l Hosp.* (1989) 216 Cal.App.3d 340, 342.) “A motion to strike does not lie to attack a [pleading] for insufficiency of allegations to justify relief; that is a ground for general demurrer.” (*Pierson, supra*, 216 Cal.App.3d at p. 342 [emphasis added].) Here, Plaintiff’s motion appears procedurally improper since it is brought on grounds for which a general demurrer is required. However, a court may treat an improper motion to strike for failure to state a cause of action as a motion for judgment on the pleadings, which “is made on the same grounds and decided on the same basis as a general demurrer.” (*Ibid.*)

A motion for judgment on the pleadings has the same function as a general demurrer, meaning it can be predicated on an answer’s failure to state facts sufficient to constitute a defense [Code Civ. Proc. § 430.20, subd. (a)] and should only be sustained where the facts alleged on the face of the answer fail to state any valid defense entitling the defendant to relief against the plaintiff. (*Gruenberg v. Aetna Ins. Co.* (1973) 9 Cal.3d 566, 572.) The defendant may be mistaken as to the nature of the case or the legal theory on which he or she can prevail, but, if the essential facts of some valid defense are alleged, the answer is sufficient against a general demurrer. (*Ibid.*)

Plaintiff argues that Defendant Court’s affirmative defenses are not defenses but, rather, merely restatements of the standards for a demurrer. Plaintiff asserts that each defense lacks supporting factual allegations and only challenges the sufficiency of Plaintiff’s complaint.

In opposition, Defendant Court asserts that: (1) its answer factually alleges that Plaintiff seeks records that are not “judicial administrative records” subject to disclosure; (2) the records are exempt from disclosure; (3) Plaintiff did not follow the required procedure; (4) Plaintiff did not contact the correct individual; (5) the records sought were not reasonably identified by Plaintiff; (6) Defendant Court took reasonable efforts to assist Plaintiff to refine her records request; and (7) Defendant Court was unable to find responsive documents due to Plaintiff’s failure to refine her search.

On reply, Plaintiff argues that, through its opposition, Defendant Court attempts to amend its answer by arguing factual allegations, legal analysis, and explanations that are not included in its answer. Plaintiff argues the opposition contains an “extensive discussion” regarding Rule 10.500 and distinctions between “judicial administrative and adjudicative records,” which are not contained in Defendant

Court's answer. However, contrary to Plaintiff's assertions, Defendant Court directly alleges Rule 10.500 in its answer (second and fourth affirmative defenses) and alleges its bases for contending that the records requested by Plaintiff are not "judicial Administrative records" subject to production (second affirmative defense). Therefore, Plaintiff's argument on this point is without merit.

Finally, Plaintiff's argument that the "affirmative defenses" are not sufficiently pleaded also appears without merit. In *State Farm Mutual Automobile Insurance Co.*, the court explained the difference between denials and affirmative defenses: "Under Code of Civil Procedure section 431.30, subdivision (b)(2), the answer to a complaint must include '[a] statement of any new matter constituting a defense.'" (*State Farm Mutual Automobile Insurance Co. v. Superior Court* (1991) 228 Cal.App.3d 721, 725.) "The phrase 'new matter' refers to something relied on by a defendant which is not put in issue by the plaintiff." (*State Farm Mutual*, *supra*, 228 Cal.App.3d at p. 725 [internal citation omitted].) "Thus, where matters are not responsive to essential allegations of the complaint, they must be raised in the answer as 'new matter.'" (*Ibid.*) Where, however, the answer sets forth facts showing some essential allegation of the complaint is not true, such facts are not 'new matter,' but only a traverse [(denial)]." (*Ibid.*)

Here, Defendant Court's defenses allege "new matters" that are not found on the face of Plaintiff's complaint. Plaintiff's complaint alleges that Defendant Court is required to provide her with certain records. In its "affirmative defenses," Defendant Court alleges reasons why Plaintiff is not entitled to the records she seeks or why it cannot comply. Defendant Court's affirmative defenses allege the legal grounds and ultimate facts in support of its denial, which are not found on the fact of Plaintiff's complaint and constitute "new matters."

35. *Morales v. VPET USA, LLC, et al*, Case No. CIVSB2108161
Plaintiff's Motion for Preliminary Approval of Class Action Settlement
8/28/26, 9:00 a.m., Dept. S-17

Tentative Ruling

The Court would **GRANT** as related to this settlement with Defendant Workforce Personnel.¹

Preliminary Approval of Class Action Settlements in General

Settlement of a class action requires court approval. (Cal. Rules of Court, rule 3.769.) The moving party must demonstrate that "the settlement is fair, adequate and reasonable." (*Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 126; *Reed v. United Teachers Los Angeles* (2012) 208 Cal.App.4th 322, 337.) The court has "broad discretion in making this determination." (*In re Microsoft I-V Cases* (2006) 135 Cal.App.4th 706, 723.) Relevant factors the court may consider include "the strength of the plaintiffs' case, the risk, the expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the stage of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction of the class members to the proposed settlement." (*Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801.) This list of factors "is not exhaustive and should be

¹ The Settlement excludes VPET USA, LLC; Andrew Hernandez, Jr.; and Andrew Hernandez, Sr. (Settlement, ¶A17.)

tailored to each case.” (*Ibid.*) The court may “engage in balancing and weighing of factors depending on the circumstances of each case.” (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 245, overruled on other grounds in *Hernandez v. Restoration Hardware* (2018) 4 Cal.5th 260, 269.)

“Although the court gives regard to what is otherwise a private consensual agreement between the parties, the court must also evaluate the proposed settlement agreement with the purpose of protecting the rights of the absent class members who will be bound by the settlement.” (*Wershba, supra*, 91 Cal.App.4th at p.245 [quoting *Dunk, supra*, 48 Cal.App.4th at p. 1801].) “The court must therefore scrutinize the proposed settlement agreement to the extent necessary to “reach a reasoned judgment that the agreement is not the product of fraud or overreaching by, or collusion between, the negotiating parties, and that the settlement, taken as a whole, is fair, reasonable and adequate to all concerned.” (*Ibid.* [quoting *Officers for Justice v. Civil Service Com’n* (9th Cir. 1982) 688 F.2d 615, 625].)

Nevertheless, the settlement is entitled to a “presumption of fairness . . . where: (1) the settlement is reached through arm’s-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is small.” (*Kullar, supra*, 168 Cal.App.4th at p. 128, quoting *Dunk, supra*, 48 Cal.App.4th at p. 1802.)

Provisional Class Certification at Preliminary Approval

Although a lesser standard can be used to provisionally certify a settlement class, the court still needs to review and consider each element for certification. (*Global Minerals & Metals Corp. v. Superior Court* (2003) 113 Cal.App.4th 836, 859.) But, as settlement eliminates the need for trial, “the case management issues inherent in ascertainable class determination need not be confronted.” (*Ibid.*)

A class should be certified when “the question is one of a common or general interest, of many persons, or when parties are numerous and it is impracticable to bring them all before court.” (Code Civ. Proc., § 382.) There must be both an ascertainable class and a well-defined community of interest, which includes predominate questions of law or fact, class representatives with claims typical of the class, and class representatives who can adequately represent the class. (*Linder v. Thrifty Oil Co.* (2000) 23 Cal.4th 429, 435.)

Settlement Notice

“If the court has certified the action as a class action, notice of the final approval hearing must be given to the class members in the manner specified by the court. The notice must contain an explanation of the proposed settlement and procedures for class members to follow in filing written objections to it and in arranging to appear at the settlement hearing and state any objections to the proposed settlement.” (Rules of Court, rule 3.769(f); *Wershba v. Apple Computer, Inc., supra*, 91 Cal.App.4th at p. 251.)

“The purpose of the class notice in the context of a settlement is to give class members sufficient information to decide whether they should accept the benefits offered, opt out and pursue their own remedies, or object to the settlement. As a general rule, class notice must strike a balance between thoroughness and the need to avoid unduly complicating the content of the notice and confusing class members. Here, again, the trial court has broad discretion. (*Wershba, supra*, 91 Cal.App.4th at p. 252.)

The manner of notice shall be by means reasonably calculated to apprise the class members of the settlement. (Rules of Court, rule 3.766(f).) The standard is “whether the notice has ‘a reasonable chance of reaching a substantial percentage of the class members.’” (*Wershba, supra*, 91 Cal.App.4th at p. 251.) The court must consider the interest of the class, type of relief obtained, the state of the individual class members, the costs of notifying the class members, the resources of the parties, the possible prejudice to the class members who do not receive notice, and the *res judicata* effect on the class members. (Rules of Court, rule 3.766(e).)

The Proposed Settlement

Here, Plaintiff filed her complaint against Defendants VPET USA and Workforce Personnel on March 10, 2021. The complaint alleges violations relating to (1) minimum wages; (2) overtime wages; (3) meal periods; (4) rest breaks; (5) final pay; (6) accurate wage statements; as well as (7) violation of the unfair competition law; and (8) civil penalties pursuant to the Private Attorneys General Act (PAGA). The matter was settled as to Defendant VPET in April of 2022, leaving only Defendant Workforce active in the litigation.

Certainly, during the course of this lengthy litigation, Plaintiffs sought and received extensive discovery. (Lauby Decl., ¶16 [discovery after initial 2022 mediation]; Settlement, ¶A47.) They also received substantial payroll and time records, as well as handbook and policy documents. (*Ibid.*) While attempts to find a settlement offramp continued for several years, eventually the parties held a formal mediation on March 19, 2026, with Hon. Jonathan Cannon, an experienced neutral. (Lauby Decl., ¶16; Settlement, ¶B48.) The parties reached a settlement in the abstract. The long form settlement agreement was executed in August of 2026. (Lauby Supp. Decl., Exh. A [Signed Settlement].) Notice of the settlement was given to the LWDA currently with the initial filing of this motion. (Lauby Decl., ¶41 & Exh. D.)

There are an estimated 245² class members and 1,438 PAGA aggrieved employees. (Settlement, ¶¶A5 & A24.) For purposes of settlement, the class period will reach from March 10, 2020, through March 19, 2026. The PAGA period is from March 10, 2020, through May 19, 2026.

The settlement is proposed on the following terms: Defendants will pay a gross, non-reversionary settlement amount of \$330,000.00,³ from which will be deducted (1) up to \$110,000.00 for Class Counsel’s attorneys’ fees (1/3rd of gross); (2) costs not to exceed \$30,000.00;⁴ (3) Plaintiff’s enhancement fees of no more than \$7,500.00 total; (4) claims administration fees not to exceed

² The lower number of class members is explained by reference to a percentage of employees covered by arbitration agreements that impacted their participation in the class claims. (See, e.g., Settlement, ¶¶A5 & A24.)

³ The Court is aware that there is an escalator provision that may increase the amounts at the time of final approval.

⁴ Prior to any final approval, Counsel will provide a break-down of costs at the motion for final approval. Notably, any attorney bills submitted in the guise of services of an expert will require explanation and clarification as to why such bills are not properly considered attorneys’ fees. Expert fees will identify the expert utilized. Further, this cap for costs appears much higher than usual. Counsel will be sure to provide a complete breakdown of costs with its motion for final approval.

\$18,550.00; and (5) PAGA penalties of \$101,649.00 (of which \$76,237, or 75%, will go to the LWDA and \$25,412, or 25%, will go to the aggrieved employees).

The parties estimate this will leave a wage-and-hour only net settlement amount of a non-reversionary \$62,301.00. This amount would be split by the class of approximately 245 current and former employees in proportionate shares determined by number of workweeks within the Settlement Class Period. The average per class member would be \$254.29. Two-thirds of paid funds will be representative of penalties and interest, and the remaining one-third (1/3rd) are representative of wages. (Settlement, ¶C50(d).)

Presuming 1,438 PAGA aggrieved employees, the average PAGA payout would be \$17.67.

The amount of the settlement is appropriate given the strength of the case, especially in light of Counsel's estimated potential liability exposure. (Lauby Decl., ¶¶30-33.) However, the lower actual settlement appears fair and reasonable in light of certification issues and when calculated to include analysis of various potential defenses as well as the potential appeal of any judgment should Plaintiffs be successful in this venue.

Given the presumption of fairness, the Court would find the figure sufficient to satisfy the *Kullar* requirement. Further, adequate discovery and investigation has occurred. There is no evidence of fraud or collusion. Class Counsel are well qualified to represent the class. The settlement was reached through an arms-length negotiation with the assistance of an experienced and well-respected mediator. The deductions from the gross settlement fund (attorneys' fees,⁵ costs,⁶ administration fee, incentive award, PAGA penalties, and taxes) appear to be reasonable and appropriate and are, therefore, *preliminarily* approved in the "not to exceed" amounts in the motion. The proposed notice is, also, adequate.

Counsel and the representative are appointed conditionally to represent the class. The motion is *granted*. The court will schedule a hearing to consider final approval at the closest available date to the date recommended by counsel.

The Court preliminarily approves the settlement and (1) Lauby, Mankin & Lauby, LLP, as Settlement Class Counsel; (2) appoints Karina Morales as Class Representative ; (3) approves ILYM Group as Settlement Administrator; (4) preliminarily finds the settlement fair, reasonable, and adequate; and (5) approves the form and content of the proposed Class Notice and directs the mailing of the same.

At final approval, counsel must advise the court of any pending cases that will be affected by approval of the settlement. Again, prior to final approval, **Counsel must provide the exact number of class members and workweeks for the class settlement and the exact number of PAGA aggrieved employees and pay periods for the PAGA settlement.**

⁵ Counsel must provide a full lodestar analysis in the motion for final approval.

⁶ Costs must be documented. The court does not award costs for LEXIS or Westlaw usage (which are considered items of overhead), faxes (also overhead), or photocopying in excess of \$0.06 per page.

TENTATIVE